



MONTHLY UPDATE

Data protection: monthly update, July 2026

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32 places. Every block below is carried verbatim from that place's own monthly update, where it was written, sourced and checked; nothing is written here.

Algeria

The data-protection authority adopted a deliberation on 15 July holding that any photograph or video permitting direct or indirect identification of a natural person is personal data, so its collection, storage, retention and publication need a legal basis. Publishing images on platforms whose infrastructure is hosted outside Algeria [may constitute an international transfer](#), triggering the adequacy obligations of articles 44–45. The deliberation's own number, text and commencement are not held; the capture is a press account of it.

One further governance event changed nothing: the national police held a [study day on 1 July](#) tying data protection to national security, with the authority present. It names no instrument.

Angola

The data protection law is in force and unamended, and its exemptions are wider than its penalties. [Fines run from USD 75,000 to 150,000, trebled for legal persons and cumulated across concurrent contraventions](#), but the statute substitutes a law or decree for the regulator's authorisation in two places, and puts processing under state-secrecy, state-security and judicial-secrecy rules outside the law altogether. The state can therefore authorise itself, and the categories where it most often processes are excluded at the outset.

A report published on 15 August by the South African organisation Intelwatch [found the intelligence service SINSE reaching biometric data without judicial supervision](#), and identified no rule stating when it may obtain identity, biometric or mobility data and no independent body to review such requests; the migration service confirmed at the Santa Clara border post that SINSE may request access under established protocols. The same report puts the [national biometric border-control system at US\\$112m, awarded in February 2025 to Dolinveste Lda with Poland's Technology for Business, reportedly by direct award rather than open tender](#), and adds a EUR 130m passport and biometric identity contract with Hungary's ANY Security Printing, taking the total past US\$250m without significant tender, parliamentary scrutiny or human-rights impact assessment. Against that spending it records [no biometric system operating at the border posts with the Democratic Republic of the Congo](#), crossings there regulated by a manually checked seven-day paper pass, and the one functional post reading passports against the migration database but with fingerprint and height capture discontinued on maintenance grounds. It also records that the electoral register is [derived from the civil identity database, with the voter card to be used for the last time in 2027](#)

before the identity card becomes the sole registration credential under the 2025 official-registration law, and that the register has never had a comprehensive independent technical audit. The figures and the characterisation of the awards are Intelwatch's; no procurement record is on file.

Botswana

The data-protection commission issued a determination and enforcement notice against the public service management directorate on 17 July, with compliance evidence due within one month. The directorate published a privacy notice on 6 July and completed an impact assessment on 13 July; the determination itself is not held, and both accounts of it are press carries.

It is the commission's second enforcement action on record, after non-bank financial institutions in February 2026, and its first against a government body. A year earlier the commission ran on three contract officers with no premises, no published address, no website and no deputy commissioner; it still has no budget organisation or line of its own.

Burkina Faso

On 3 August the legislature voted the personal-data protection bill and the organic law creating a merged communications and data-protection authority. The new law prohibits and sanctions processing without consent, indexes administrative fines to turnover excluding tax and scales them by gravity, and prohibits transferring sensitive data abroad. The merged authority takes the data-protection commission's mandate and is given its own rule-making power with artificial intelligence named specifically. Neither text is held, neither is promulgated, and no commencement, seat or leadership is stated.

The same 23 July sitting replaced the 2017 decree governing the non-profit register, fixing for the first time a retention period for that data after dissolution.

Burundi

On 24 July the consumer association ABUCO told Iwacu that months of complaints describe subscribers enrolled in paid value-added services without their knowledge and with no notification, some losing 3,000 to 10,000 Burundian francs a day; its president cites over 40,000 francs taken as such charges across about three months from November 2025. ARCT issued injunctions to Lumitel on 29 May 2026 requiring genuinely voluntary subscription and prior notification; Lumitel maintains nothing activates without a customer's deliberate action; ABUCO reports no significant improvement since, and no sanction is on file. The new data-protection law's central mechanism is consent, and no role for the authority it creates is reported here.

Cote d'Ivoire

The mobile-money agents' union wrote to the regulator on 24 July with four questions on whether kiosk agents may demand, photograph or retain customer identity documents, after four operators required retention. No regulator response is on file.

Djibouti

On 4 August 2026 the state daily *La Nation* [described the Police Nationale and road-safety officers carrying body-worn cameras routinely in central Djibouti](#), not piloting them. The protocols it reports require the device to be worn visibly and the subject to be told they are being recorded, with recording triggered manually or automatically according to the type of intervention or the threat level detected. No retention period, access rule, data controller or authorising instrument is named, and nothing on file establishes one as at 4 August 2026. The Digital Code's prior-authorisation regime, in force since 30 June 2025, reaches biometric processing, and no authorisation or published rule covering the camera fleet is held.

DR Congo

Data protection has an authority that does not exist and a population whose service does not reach it. The [national data protection authority is still not created](#), named again in July as a link in the cybersecurity chain after the minister said in March that structuring a professional network precedes it — two years of the same finding, running alongside a twenty-year exclusive foreign concession over citizens' identity data. In the east, [Baraka and Fizi have had telecoms and internet cut for months amid operations near Epupu, and humanitarian organisations' satellite kits were seized on the Baraka mayor's order](#), closing the last backup channel. It is reported as war damage and fuel-access failure rather than an ordered restriction, and no licensing or administrative decision for occupied territory is held.

Eswatini

The next day ESCCOM, as the data protection authority, [began validating draft advisory guidelines on the lawful processing of personal health data](#) at Ezulwini, with the health ministry, providers, insurers, pharmacies and medical aid schemes. They will be published as a regulatory instrument under the Data Protection Act 2022, covering collection, retention, sharing, breach notification, cloud services and patient rights. The commission disclosed that it has concluded a complaint over a practitioner's unlawful disclosure of a patient's information.

In August the same rule-making reached a second sector and produced a ranking. A week-long workshop [validated draft sector data-protection guidelines and produced a proposed whistle-blower-protection framework, with the regulator naming the financial sector as the leading source of personal-data breaches](#) — through misdirected statements and invoices, and cybersecurity incidents exposing customer records. No breach count, penalty or enforcement action is published behind the ranking, and the draft guidelines are not held.

Ethiopia

The Development Bank [adopted an information disclosure policy classifying client credit information permanently non-disclosable](#), alongside legal case files, strategy papers, security protocols and third-party contracts, where disclosure could cause substantial harm to the Bank, its stakeholders or the national interest. The Bank may also decline a request that would require it to create a record it does not already hold. No instrument number, gazette reference or appeal mechanism is stated.

Gambia

The body that carries both of the country's information statutes surfaced in the record for the first time this window, and it surfaced as a recipient of support rather than as a regulator acting. The Information Commission, responsible for the Access to Information Act 2021 and the Personal Data Protection and Privacy Act 2025, is [receiving UNFPA-funded support under the Peacebuilding Fund's Public Accountability Project to build a communication strategy raising public awareness of both statutes](#). No budget, staffing, caseload or enforcement record for the commission is held, and awareness-raising support is not evidence of capacity to enforce.

Ghana

The data-protection regulator's own enforcement record did not change; the action framed as a data-privacy violation in the month was taken by the central bank. But the cyber security authority produced the first enforcement of its kind the base holds, and its subject is another arm of the state. It [fined the Registrar of Companies GH¢240,000 for engaging an unlicensed cybersecurity provider and fined that provider GH¢120,000 for operating without a licence](#), after the registrar ignored a June 2026 directive to engage a licensed tier-one critical-information-infrastructure provider under the Cybersecurity Act 2020. No payment, appeal or remediation record follows it.

Guinea

The day after NimbaPay opened, the consumer body AGUIDUTEN [set twelve conditions on it](#): a published complete tariff grid, fees disclosed before confirmation, a complaints mechanism with binding deadlines for handling and refund, immediate traceable receipts, data collection limited to disclosed purposes, independent audits of security and availability, guaranteed access for rural, disabled, feature-phone and low-literacy users, periodic publication of failure, outage, fraud and refund statistics, and consumer organisations seated in governance. No regulator or operator response is on file.

Kenya

On 4 August the data-protection regulator published [draft guidance on offshore AI processing](#) requiring a lawful transfer basis, a documented adequacy assessment and a written processing agreement before personal data leaves Kenya; the note itself is not held after two retrievals returned HTTP 404.

The gambling regulator [confirmed on 3 August](#) that it is investigating three licensed operators on a complaint dated 19 May 2026, with police requesting its entire record on the licensees back to 2018.

Liberia

The telecoms regulator [fined an operator LRD 4m for issuing a subscriber's SIM to a third party without authorisation](#). The penalty came under telecoms powers rather than data-protection law — which is the point, since the Act that would have supplied the latter is unsigned.

Malawi

The communications regulator consulted stakeholders at Blantyre on 13 July 2026 on draft Data Protection Regulations and a registration fee schedule setting annual fees by turnover from MWK 50,000 for small and medium enterprises to MWK 7 million for the largest controllers and processors of significant importance ([consultation account](#)). The consultation follows the elapse in early June of the twenty-four-month exemption that had kept most controllers outside the Act's obligations since commencement ([the Act](#)). No commencement date for the regulations was announced.

The regulator's first published position on a specific harm followed on 18 August: a notice warning that [recording, publishing or sharing non-consensual intimate content breaches the Data Protection Act 2024, carrying fines to K20,000,000 and up to five years' imprisonment under section 49, with separate penalties under the Electronic Transactions and Cyber Security Act 2016](#). It states the law rather than applying it: no case, complaint count or enforcement action accompanies it, and enforcement under the Act remains *Not held*.

Mali

On 3 August the [data-protection authority opened its second 2026 session](#) with more than 1,000 files before it over ten days — authorisations, declarations, video-surveillance oversight, formal notices and direct sanction procedures — its president grounding the sanctions in Loi n2013-015 as amended.

Mauritius

The Data Protection Act 2017 is not among the Acts the July omnibus amends: the digital provisions sit in five Acts and the safeguards Act is not one. At the same summit the ICT minister also committed to Data Protection Act amendments covering cybersecurity, privacy and children's online safety, with no text or date stated. Communications interception, run without judicial oversight, has no drafted narrative this period.

Morocco

Live facial recognition entered service in Rabat in the same weeks ([deployment account](#)), presented by the police directorate as domestically engineered and reported with an up-to-95% plate-recognition figure ([second account](#)).

Mozambique

The same 22 July conference remarks named the personal data protection law as an instrument in preparation, under the same warning that once approved it will place obligations on companies and not only on the state ([ministerial account](#)). Mozambique remained without a data protection law in force, with no tabling or adoption date stated.

Namibia

On 4 August an opposition member told a newspaper that with no data-protection statute in force there is no legal definition of a data controller and no rules governing cross-border transfer, that the constitutional privacy provision has no enabling statute, and asked parliament to compel disclosure of the smart-city agreements, annexures, contractors, data architecture and lifetime operating costs ([member's account](#)). A gazette notice withdrawing existing identity documents is otherwise covered in this month's summary; it has no separate drafted narrative here.

Nigeria

On 28–29 July the Federal High Court [upheld the data-protection commission's power](#) to designate and register controllers and processors of major importance, dismissing a suit that had sought to place PoS agents outside the class; the commission immediately directed every unregistered entity to register. The judgment is not held and its delivery date is unestablished. The commission then used the power: on 13 August it [opened a forensic investigation into a federal university, a bank and a technology vendor over the alleged use of students' personal data to open bank accounts without consent](#). No finding or penalty has followed.

Its other August move was institutional rather than adversarial: the commission and the securities regulator [agreed to deepen collaboration on data-protection compliance in the capital market](#), the commission's head visiting the regulator in Abuja and being invited to its compliance summit. No memorandum, joint supervisory arrangement, compliance standard or enforcement commitment is stated.

Senegal

The data-protection reform reached a [finalisation workshop for the bill and its implementing decree, rewritten against the data and AI strategies](#), with no adoption date or published text.

Somalia

The communications minister restated on 22 July the request that Meta [delay the rollout of WhatsApp usernames](#), first made in a regulator statement of 6 July. [The stated grounds are impersonation and fraud risk against a mobile-money system carrying about 155m transactions a month worth US\\$2.7bn, and the loss of phone-number traceability in the campaign against al-Shabab](#). Somalia is the second country after India to ask for a pause; no response from the platform is on record.

South Africa

The data-protection statute has been enforceable since 2021 and operates as an adequacy model rather than hard localisation: [cross-border transfers are permitted where equivalent protection, consent or contractual necessity applies, with the controller accountable](#). The [maximum fine is R10m against a measured average breach cost of R44.1m](#) — the penalty is a fraction of the harm it is meant to deter.

Sudan

The Council of Ministers reviewed a draft Data and Artificial Intelligence Law on 6 August 2026, paired with the cybersecurity and digital-transformation drafts, and sent all three back for further study; the enactment route is a joint sitting of the Sovereignty Council and Council of Ministers rather than an elected chamber, and no text has been published.

Tanzania

The data protection commission and the open university opened a certification programme for data protection officers on 14 July, the university training and assessing and the commission certifying, aimed at government, finance, telecommunications, healthcare, education and technology. It answers the statutory officer duty; no intake number, fee or cohort date was published.

A separate rule pulls in the other direction. Businesses selling on social media must now display tax credentials — a taxpayer identification number, tax clearance certificate or certificate of registration — on their public pages, and digital creators and online traders have objected that publishing those credentials exposes them to impersonation and fraud (12 August). The objections are those of named creators and traders reported by the paper rather than a regulator finding; no data-protection assessment or redress route is published.

Togo

The data-protection body is operating with thirty-two certified corporate correspondents by June 2026 and a second international forum convened at Lome in July. Its organisation decree is still not held.

Tunisia

No legal basis is held for the linked national health dataset — no decree, ministerial order or data-sharing instrument stating the basis, retention rule and supervisory authority for a dataset joining health, civil-status, social-affairs and education records. The ministry asserts only that the data is stored confidentially and securely. An assurance about storage is not an authority to link.

Uganda

The data protection office's letter of 17 July confirmed compliance with the five orders in its decision of 20 February 2026, which had required a data-protection impact assessment, an adequacy assessment, a legitimate-interests assessment and a Uganda-specific privacy notice. The decision imposed no fine and refused the complainant's prayers for cessation of intra-group sharing.

On 14 August the ICT ministry launched a three-year child online-safety campaign in Kampala with the communications regulator and a private partner. No budget, reach target or evaluation arrangement is published for it, which is the same gap that closed the previous awareness campaign without a measured result.

Zambia

The data-protection regulator exists and travels; nothing in the base shows it acting. It joined a multi-sectoral delegation to the continental identity conference, and on 31 July [nine civil society organisations asked it to examine the source of the contact list behind SMS messages sent to social cash transfer beneficiaries](#) before the 13 August election. No response from the Office is on the record. No registration count, enforcement decision, fine, breach notification, guidance note or annual report is held for it at any date. The Data Protection Act 2021 remains in force and was [named by the information ministry on 18 July as one of three instruments regulating online communications, cybersecurity and personal data](#); the reported Cabinet intention to repeal it has produced nothing on the record in sixteen months.

What is being built for it is a system rather than a case. The World Bank-financed acceleration project [opened tender on 10 August, closing 21 August, for a digital data-protection compliance management system to serve the Commission](#), to integrate with the government service bus and payment gateway and to meet ISO/IEC 27001, ISO/IEC 27701 and WCAG 2.1 AA, alongside a [parallel tender to review the national data-protection guidelines and compliance frameworks](#). Tenders rather than awards, and neither states a value, a delivery date, or the caseload the system would manage.

Zimbabwe

Certification of every data protection officer is required under the same 26 July notice, at US\$1,250 for a Zimbabwean ([notice account](#)).

August brought the objections. Healthcare providers and the medical association [objected to the data-controller licensing regime as applied to them — roughly US\\$300 a year plus a mandatory data protection officer — calling it costly and duplicative of existing health-professions regulation](#) ahead of the September inspections, and a published analysis [argued the regulator's threshold-based licensing model is disproportionately burdensome for small entities](#) against the risk-based approach of the European regulation it is compared with. The statutory instrument's fee schedule is not held, and no licence count, exemption or regulator response to the objections is on record.

Two further protection questions surfaced without a regulator attached. The anti-corruption commission is [investigating cyber-enabled fraud across three state digital systems](#): suspected manipulation of the driver-licensing platform, a US\$150m diversion of state mobile-operator airtime with a criminal case pending and asset forfeiture completed, and a scheme crediting more than ZiG55m and US\$260,000 of fictitious prepayments on the revenue authority's customs platform. And the National Child Online Protection Policy 2026-2030, [approved by Cabinet in June, has no reporting route, responder training or funded rollout on record](#) — which is what a published analysis argues will decide whether it protects anyone.

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